



IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 31ST DAY OF JANUARY, 2026

PRESENT

THE HON'BLE MRS. JUSTICE ANU SIVARAMAN

AND

THE HON'BLE MR. JUSTICE VIJAYKUMAR A. PATIL

WRIT APPEAL NO.140/2023 (S-RES)

BETWEEN:

DR. C.D. VENKATESH
S/O LATE VENKATARAMAIAH C.S.
AGED ABOUT 62 YEARS
NOW RETIRED AS PRINCIPAL
MALNAD COLLEGE OF ENGINEERING
HASSAN-573202
AND NOW R/AT NO.1432
SHAMANNA KRIPA
MARUTHI STREET
N R EXTENSION, HASSAN-573201.

...APPELLANT

(BY SRI. SUBRAMANYA BHAT M, ADV.,)

AND:

1. STATE OF KARNATAKA
REP. BY THE SECRETARY
DEPARTMENT OF TECHNICAL EDUCATION
M S BUILDING, BANGALORE-01.
2. THE DIRECTOR OF TECHNICAL EDUCATION
PALACE ROAD, BANGALORE-01.
3. THE PRINCIPAL
MALNAD COLLEGE OF ENGINEERING
HASSAN-573201.

Digitally signed by
ARSHIFA BAHAR
KHANAM
HIGH COURT OF
KARNATAKA



4. THE COMMISSIONER
DEPARTMENT COLLEGIATE AND
TECHNICAL EDUCATION
PALACE ROAD, BENGALURU - 560001.

...RESPONDENTS

(BY SMT. SHWETA KRISHNAPPA, AGA FOR R1, R2 & R4
SRI. MAN MOHAN P.N. ADV., FOR R3)

THIS WRIT APPEAL IS FILED U/S 4 OF THE KARNATAKA
HIGH COURT ACT, PRAYING TO ALLOW THIS WRIT APPEAL
AND SET ASIDE THE ORDER DATED 14/11/2022 PASSED IN WP
NO.2219/2012 (BATCH NO. WP 2219-2221/2012), ON THE FILE
OF THE LEARNED SINGLE JUDGE, TO MEET THE ENDS OF
JUSTICE.

THIS APPEAL, COMING ON FOR ADMISSION, THIS DAY,
JUDGMENT WAS DELIVERED THEREIN AS UNDER:

CORAM: HON'BLE MRS. JUSTICE ANU SIVARAMAN
and
HON'BLE MR. JUSTICE VIJAYKUMAR A. PATIL

ORAL JUDGMENT

(PER: HON'BLE MR. JUSTICE VIJAYKUMAR A. PATIL)

This intra Court appeal is filed challenging the order
of the learned Single Judge dated 14.11.2022 passed in



W.P.No.2219/2012 (S-RES), wherein the writ petition filed by the appellant was dismissed.

2. Sri.Subramanya Bhat M, learned counsel appearing for the appellant submits that the learned Single Judge, without considering the fact in its proper perspective, dismissed the petition. The learned counsel for the appellant submits that the appellant was compelled to pursue Ph.D. as the same was made a mandatory qualification for promotion to the posts of Associate Professor and Professor under the Government Orders and the AICTE Regulations. Therefore, the deputation was not voluntary but necessitated by statutory requirements. It is further contended that the appellant was deputed under the Quality Improvement Programme (QIP) sponsored by the AICTE and the said deputation was subsequently granted post facto approval by the Government. Once such approval is granted, recovery of salary paid during the deputation period is wholly unjustified. It is further submitted that similarly situated teaching faculty of the



very same institution, including one Dr.Vishwanath Hegde, were either not subjected to recovery or the recovered amount was later refunded. Hence, singling out the appellant for recovery amounts to hostile discrimination offending Articles 14 and 21 of the Constitution of India. It is also submitted that there was no financial loss caused to the Government or the Institution as no substitute staff was appointed during the appellant's deputation. Therefore, the action of recovery is arbitrary, harsh and liable to be set aside. Hence, he seeks to allow the appeal.

3. *Per contra*, the learned Additional Government Advocate for the respondent Nos.1, 2 and 4 and Sri.Manmohan P.N., learned counsel appearing for the respondent No.3 would support the impugned order and submit that the learned Single Judge has rightly dismissed the writ petition. It is submitted that Appendix II-A Rule 1(7) of the Karnataka Civil Services Rules, clearly stipulates that the deputation for higher studies can be



permitted only once during the entire service of an employee. It is further submitted that the appellant had already availed the deputation earlier for acquiring the Master's Degree and therefore, the second deputation for pursuing Ph.D. could only be at his own cost by availing leave at his credit. The payment of salary during the second deputation was contrary to the statutory rules and the audit objections were rightly raised. It is also submitted that the post facto approval granted by the Government only regularizes the deputation and does not confer any right to claim salary contrary to the Rules. Any payment made in violation of the statutory provisions does not create a legal entitlement. It is contended that the plea of discrimination is misconceived, as Article 14 of the Constitution of India does not envisage negative equality. An illegality, if committed in favour of others, cannot be relied upon by the appellant to seek similar relief. Hence, the recovery effected is legal, justified and does not call for any interference by this Court.



4. We have heard the submissions of the learned counsel for the appellant, the learned Additional Government Advocate for the respondents No.1, 2, 4, learned counsel for the respondent No.3 and meticulously perused the material available on record. We have given our anxious consideration to the submissions advanced on both the sites.

5. The undisputed facts are that the appellant was appointed as a Lecturer in the respondent No.3-College in the year 1984. He was deputed during the years 1992-94 to acquire the Master's Degree in Engineering, during which period he was paid full salary. After acquiring the said qualification, he was promoted as the Assistant Professor and thereafter, as the Associate Professor. It is also not in dispute that subsequently, pursuant to the Government Orders making Ph.D. a mandatory qualification for promotion, the appellant was deputed for the second time during the period from 16.07.2009 to



16.07.2012 to pursue Ph.D. under the Quality Improvement Programme (QIP). During this period also, salary was paid to the appellant. The audit objections were thereafter raised on the ground that the appellant was deputed for higher studies for the second time and that payment of salary during such second deputation was contrary to Appendix II-A Rule 1(7) of the Karnataka Civil Services Rules and the said circular is produced at Annexure-H. On the basis of such audit objections, recovery proceedings were initiated. The principal contention of the appellant is that the deputation was necessitated due to the statutory requirements prescribed by the UGC and that post facto approval was granted by the Government. It is further contended that similarly situated persons were not subjected to recovery and therefore, the action is discriminatory.

6. The issue that arises for consideration is whether the appellant was legally entitled to the payment of salary during the period of his second deputation for



higher studies. Appendix II-A Rule 1(7) of the Karnataka Civil Services Rules specifically provides that the deputation for higher studies or specialised training shall ordinarily be permitted only once during the entire service of a Government servant and the deputation for the second time can only be at the cost of the employee by availing leave at his credit, subject to prior permission of the Government. The respondent No.3-College being an aided institution is bound by the Karnataka Civil Services Rules and the Government circulars governing deputation and study leave. Any payment made contrary to the statutory rules would not confer a legal right on the employee. Merely because the appellant was required to acquire Ph.D. for the purpose of promotion, the same by itself would not override the statutory rules governing deputation and payment of salary. The learned Single Judge has rightly held that there is no provision under the law to pay the full salary during the period of second deputation for higher studies. The contention regarding



post facto approval also does not advance the case of the appellant. Post facto approval only regularises the deputation but does not create a right to claim salary contrary to the Rules.

7. Insofar as the plea of discrimination is concerned, it is untenable. If any benefit has been extended to others contrary to Rules, the same cannot be relied upon to claim parity in illegality. Article 14 of the Constitution of India does not envisage the negative equality. We also do not find any merit in the contention that the recovery violates Article 21 of the Constitution of India. The recovery is made in accordance with the statutory Rules and the audit objections and therefore, cannot be said to be arbitrary or illegal. Hence, on an overall consideration of the matter, we find no error or infirmity in the order passed by the learned Single Judge warranting interference in this appeal.



Accordingly, the writ appeal is devoid of merit and the same is dismissed. Consequently, the pending interlocutory applications stand disposed of.

No order as to costs.

Sd/-
(ANU SIVARAMAN)
JUDGE

Sd/-
(VIJAYKUMAR A. PATIL)
JUDGE

RV
List No.: 1 Sl No.: 1